United States Bankruptcy Court for the Southern District of Texas	
Name of Debtor: Instant Brands Acquisition Holdings Inc. **Case Number:** 23-90716	**For Court Use Only** Claim Number: 0000010028 File Date: 06/20/2023 07:45:30

Proof of Claim (Official Form 410)

Read the instructions before filling out this form. This form is for making a claim for payment in a bankruptcy case. With the exception of 503(b)(9), do not use this form to make a request for payment of an administrative expense. Make such a request according to 11 U.S.C. § 503.
Filers must leave out or redact information that is entitled to privacy on this form or on any attached documents. Attach redacted copies of any documents that support the claim, such as promissory notes, purchase orders, invoices, itemized statements of running accounts, contracts, judgments, mortgages, and security agreements. **Do not send original documents;** they may be destroyed after scanning. If the documents are not available, explain in an attachment.
A person who files a fraudulent claim could be fined up to $500,000, imprisoned for up to 5 years, or both. 18 U.S.C. §§ 152, 157, and 3571.
Fill in all the information about the claim as of the date the case was filed. That date is on the notice of bankruptcy (Form 309) **that you received.**

04/22

Part 1: Identify the Claim

1. Who is the current creditor?
Name of the current creditor (the person or entity to be paid for this claim): Autumn Transport Inc

Other names the creditor used with the debtor: Autumn Logistics Inc

2. Has this claim been acquired from someone else? ☑ No ☐ Yes. From whom? _____

3. Where should notices and payments to the creditor be sent? Federal Rule of Bankruptcy Procedure (FRBP) 2002(g)

Where should notices to the creditor be sent?	**Where should payments to the creditor be sent?** (if different)
Name: Autumn Transport Inc	Name:
Address: 6550 Courtly Rd	Address:
City: Woodbury	City:
State: MN ZIP Code: 55125	State: ZIP Code:
Country (if International): United States	Country (if International):
Phone: 6512940130	Phone:
Email: crhendrix@autumntransport.com	Email:

4. Does this claim amend one already filed?
☑ No
☐ Yes.
Claim number on court claims register (if known) _____
Filed on _____ MM / DD / YYYY

5. Do you know if anyone else has filed a proof of claim for this claim?
☑ No
☐ Yes.
Who made the earlier filing?
_____

Part 2: Give Information About the Claim as of the Date the Case Was Filed

6. Do you have any number you use to identify the debtor?

☑ No

☐ Yes.
Last 4 digits of the debtor's account or any number you use to identify the debtor:

____ ____ ____ ____

7. How much is the claim?

$ 13,143.25

Does this amount include interest or other charges?

☑ No

☐ Yes. Attach statement itemizing interest, fees, expenses, or other charges required by Bankruptcy Rule 3001(c)(2)(A).

8. What is the basis of the claim?

Examples: Goods sold, money loaned, lease, services performed, personal injury or wrongful death, or credit card. Attach redacted copies of any documents supporting the claim required by Bankruptcy Rule 3001(c). Limit disclosing information that is entitled to privacy, such as health care information.

Goods Sold/Services (Trade Claim)

9. Is all or part of the claim secured?

☑ No

☐ Yes. The claim is secured by a lien on property.

Nature of property:

☐ Real estate. If the claim is secured by the debtor's principal residence, file a *Mortgage Proof of Claim Attachment* (official Form 410-A) with this *Proof of Claim.*

☐ Motor vehicle

☐ Other. Describe:

_____

Basis for perfection:

_____

Attach redacted copies of documents, if any, that show evidence of perfection of security interest (for example, a mortgage, lien, certificate of title, financing statement, or other document that shows the lien has been filed or recorded.)

Value of property: $_____

Amount of the claim that is secured: $_____

Amount of the claim that is unsecured: $_____
(The sum of the secured and unsecured amounts should match the amount in line 7.)

Amount necessary to cure any default as of the date of the petition: $_____

Annual Interest Rate (when case was filed) _____%

☐ Fixed ☐ Variable

10. Is this claim based on a lease?

☑ No

☐ Yes. **Amount necessary to cure any default as of the date of petition.**

$_____

11. Is this claim subject to a right of setoff?

☑ No

☐ Yes. Identify the property:

_____

12. Is all or part of the claim entitled to priority under 11 U.S.C. § 507(a)?

☑ No

☐ Yes. *Check one:*

A claim may be partly priority and partly nonpriority. For example, in some categories, the law limits the amount entitled to priority.

Amount entitled to priority

☐ Domestic support obligations (including alimony and child support) under 11 U.S.C. § 507(a)(1)(A) or (a)(1)(B). $_____

☐ Up to $3,350* of deposits toward purchase, lease, or rental of property or services for personal, family, or household use. 11 U.S.C. § 507(a)(7). $_____

☐ Wages, salaries, or commissions (up to $15,150*) earned within 180 days before the bankruptcy petition is filed or the debtor's business ends, whichever is earlier. 11 U.S.C. § 507(a)(4). $_____

☐ Taxes or penalties owed to governmental units. 11 U.S.C. § 507(a)(8). $_____

☐ Contributions to an employee benefit plan. 11 U.S.C. § 507(a)(5). $_____

☐ Other. Specify subsection of 11 U.S.C. § 507 (a) (_____) that applies. $_____

* Amounts are subject to adjustment on 4/01/25 and every 3 years after that for cases begun on or after the date of adjustment.

13. Does this claim qualify as an Administrative Expense under 11 U.S.C. § 503(b)(9)?

☑ No

☐ Yes. **Amount that qualifies as an Administrative Expense under 11 U.S.C. § 503(b)(9)**: $_____

Part 3: Sign Below

The person completing this proof of claim must sign and date it. FRBP 9011(b).

If you file this claim electronically, FRBP 5005(a)(2) authorizes courts to establish local rules specifying what a signature is.

A person who files a fraudulent claim could be fined up to $500,000, imprisoned for up to 5 years, or both. 18 U.S.C. §§ 152, 157, and 3571.

Check the appropriate box:

☑ I am the creditor.

☐ I am the creditor's attorney or authorized agent.

☐ I am the trustee, or the debtor, or their authorized agent. Bankruptcy Rule 3004.

☐ I am a guarantor, surety, endorser, or other co-debtor. Bankruptcy Rule 3005.

I understand that an authorized signature on this *Proof of Claim* serves as an acknowledgment that when calculating the amount of the claim, the creditor gave the debtor credit for any payments received toward the debt.

I have examined the information in this *Proof of Claim* and have a reasonable belief that the information is true and correct.

I declare under penalty of perjury that the foregoing is true and correct.

Christopher R Hendrix 06/20/2023 07:45:30

Signature Date

Provide the name and contact information of the person completing and signing this claim:

Name: Chris Hendrix

Address: 6550 Courtly Rd

City: Woodbury

State: MN Zip: 55125

Country (in international): United States

Phone: 6512940130

Email: crhendrix@autumntransport.com

Autumn Logistics Inc

6550 Courtly Road, Suite 200
Woodbury MN 55125-2921
1-855-294-0160

Invoice Number
374304A

Delivery Date 5/11/2023

Shipper: THE QUARTZ COMPANY
8342 NC-226
L M-F 0700-1500
SPRUCE PINE, NC 28777

Consignee: INSTANT BRANDS
1 STEUBEN STREET
CORNING, NY 14830

Rev Type 1 PNEU
Driver UNKNOWN
Tractor
Trailer
Carrier BRAVER

Reference Number(s)

Type	Number
REF	10628540
REF	K233740

Description	ACTUAL WEIGHT	Billing Quantity	Rate	Charge
FELDSPAR				
3-Freight (flat)		1 Flat	3,050.00 Flat	$3,050.00
Fuel Surcharge - % of revenue		3,050 US Dollars	0.32 $/Dollar	$976.00
Washout		1 Flat	350.00 Flat	$350.00
Total Due				**$4,376.00**

* Questions email billing@autumnlogistics.com *
Please reference invoice number on all payments
1.5% per month finance charge after 21 days
Customer responsible for all costs of collection

5/23/2023 01:45:50 PM

AUTUMN

Bill To: INSDOW EC
INSTANT BRANDS
3025 HIGHLAND PARKWAY
SUITE 700
DOWNERS GROVE, IL 60041

Remit To:
Autumn Logistics Inc (SCAC CODE: ANLG)
PO Box 877
Lake Elmo MN 55042

374304

STRAIGHT BILL OF LADING - SHORT FORM - ORIGINAL - Not Negotiable

"Shipper's Imprint in lieu of stamp; not part of bill of lading approved by the Interstate Commerce Commission"

...rail carrier being understood throughout this contract meaning any person or corporation in possession of the property under the ...ees to carry to its usual place of delivery at said destination, if on its route, otherwise to deliver to another carrier on the route to said ...ny at any time interested in all or any of said property, that every service to be performed hereunder shall be subject to all the terms and condition... of the Uniform Domestic Straight Bill of Lading set forth (1) in Official, Southern, Western and Illinois Freight Classifications in effect on the date hereof, if this is a rail-water shipment, or (2) in the applicable motor carrier classification or tariff if this is a motor carrier shipment. Shipper hereby certifies that he is familiar with all the terms and conditions of the said Bill of Lading, including there on the back, therefore, set forth in the classification or tariff which governs transportation of this shipment, and the said terms and conditions are hereby agreed to by the shipper and accepted for himself and his assigns

This is to certify that the below names materials are properly classified described package marked and labeled and are in proper condition for transportation according to the applicable regulations of the Department of

CONSIGNEE:
Instant Brands LLC
Pressware Plant
One Steuben Street
Corning NY 14830
UNITED STATES

SHIPPER:
The Quartz Corp
KT Feldspar Plant
8342 Highway 226 Bypass
Spruce Pine NC 28777

PERMANENT POST OFFICE ADDRESS OF SHIPPER:
The Quartz Corp
KT Feldspar Plant
8342 Highway 226 Bypass
Spruce Pine NC 28777

B/L NO
X122512

B/L DATE

CUSTOMER P.O NUMBER	ORD DATE	CAR NUMBER	OUR ORDER NO
10528540	04/27/2023		K233740
SHIP VIA	MODE		FOB
CSXT Railroad	Bulk Trailer Truck		Spruce Pine, NC
ROUTING			FREIGHT CHARGED Collect
SPECIAL INSTRUCTIONS		DATE SHIPPED	

"Shippers imprint in lieu of stamp; not a part of bill of lading approved by the Interstate Commerce Commission."

Subject to section 7 of Conditions of applicable bill of lading, if this shipment is to be delivered to the consignee without recourse on the consignor, the consignor shall sign the following statement. The carrier shall not make delivery of this shipment without payment of freight and all other lawful charges

THE QUARTZ CORP

(Signature of Consignor)

If charges are to be prepaid, write or stamp here, "To Be Prepaid."

ITEMS BETWEEN DOUBLE LINES ARE NOT PART OF THE B/L

Z100893 - MS1FG Bulk 24.000 Short ton

Lot Number:
Seal Number:
Loader
Comments:

5-11-23

VS: BK#: C/O: Sail: UNITED STATES

Agent or Cashier
Per
(The Signature here acknowledges only the amount prepaid)

Charges Advanced

This car is loaded in compliance with requirements of sections 500.70 to 500.79 inclusive of O D T 18-A Revised Part 500

By THE QUARTZ CORP

Rec'd to apply in prepayment of the charges on the property described here on

WEIGHTS: GROSS, TARE, NET

GROSS: 81140
TARE: 31700
NET: 49440
DOCK:
ARRIVE:
LEAVE:

NO. PACKAGES	KIND OF PACKAGE, DESCRIPTION OF ARTICLES, SPECIAL MARKS AND EXCEPTIONS	STCC NUMBER	*WEIGHT (SUB TO COR.)	CLASS OR RATE
	GROUND FELDSPAR ORE	03295510	48000	
	***** TOTAL WEIGHT		48000	

WARNING: TQC USA contain silica DO NOT BREATH DUST Prolonged inhalation may cause lung injury (Silicosis) Follow OSHA Safety & Health Standards for crystalline silica (Quartz). There is sufficient evidence that inhaled crystalline silica causes cancer in humans

*** If the shipment moves between two ports by a carrier by water, the law requires that the bill of lading shall state whether it is "carrier's or shipper's weight". NOTE - Where the rate is dependent on value, shippers are required to state specifically in writing the agreed or declared value of the property. The agreed or declared value of the property is hereby specifically stated by the shipper to be not exceeding**

The Quartz Corp

Shipper, Per

AGENT MUST DETACH AND BEVAN THIS SHIPPING ORDER AND MUST SIGN THE ORIGINAL BILL OF LADING

THE QUARTZ CORP
Box 309, Spruce Pine, NC 287

B/L NO X122

OUT OF SERVICE

LBS GROSS	81140
LBS TARE	31700
LBS NET	49440

5-11-23

WEIGHED BY

CUSTOMER NAME

LOCATION

PRODUCT F

CARRIER BRALY

DATE

Autumn Transport, Inc.

6550 Courtly Road
Woodbury MN 55125-2921
1-800-328-1405

Invoice Number
557693A

Delivery Date 4/27/2023

Shipper: THE QUARTZ COMPANY
8342 NC-226
SPRUCE PINE, NC 28777

Consignee: WORLD KITCHEN
1 STEUBEN ST
CORNING, NY

Rev Type 1 PNEU
Driver CHAMBMA
Tractor 1786
Trailer 51101
Carrier UNKNOWN

Reference Number(s)

Type	Number
PO #	10628150
ORD#	K233674

Description	ACTUAL WEIGHT	Billing Quantity	Rate	Charge
FELDSPAR				
3-Freight (flat)		1 Flat	3,050.00 Flat	$3,050.00
Washout		1 Flat	350.00 Flat	$350.00
Fuel Surcharge - % of revenue		3,050 US Dollars	0.325 $/Dollar	$991.25
Total Due				**$4,391.25**

* Questions email billing@autumntransport.com *
Please reference invoice number on all payments
1.5% per month finance charge after 21 days
Customer responsible for all costs of collection

5/4/2023 09:31:53 AM

AUTUMN

Bill To: INSDOW EC

INSTANT BRANDS
3025 HIGHLAND PARKWAY
SUITE 700
DOWNERS GROVE, IL 60041

Remit To:

Autumn Transport. Inc.
PO Box 877
Lake Elmo MN 55042

SHIPPER THE QUARTZ CORP

STRAIGHT BILL OF LADING - SHORT FORM - ORIGINAL - Not Negotiable

RECEIVED, subject to the classifications and tariffs in effect on the date of the issue of this Bill of Lading the property described below, in apparent good order, except as noted (contents and condition of contents of packages unknown), marked, consigned, and destined as indicated below, which said carrier (the word carrier being understood throughout this contract meaning any person or corporation in possession of the property under the contract) agrees to carry to its usual place of delivery at said destination, if on its route, otherwise to deliver to another carrier on the route to said destination. It is mutually agreed, as to each carrier of all or any of said property over all or any portion of said route to destination, and as to each party at any time interested in all or any of said property, that every service to be performed hereunder shall be subject to all the terms and conditions of the Uniform Domestic Straight Bill of Lading set forth (1) in Official, Southern, Western and Illinois Freight Classifications in effect on the date hereof, if this is a rail-water shipment, or (2) in the applicable motor carrier classification or tariff if this is a motor carrier shipment. Shipper hereby certifies that he is familiar with all the terms and conditions of the said Bill of Lading, including those on the back thereof, set forth in the classification or tariff which governs transportation of this shipment, and the said terms and conditions are hereby agreed to by the shipper and accepted for himself and his assigns.

"Shippers imprint in lieu of stamp; not part of bill of lading approved by the Interstate Commerce Commission"

This is to certify that the above named materials are properly classified, described, packaged, marked and labeled, and are in proper condition for transportation according to the applicable regulations of the Department of

CONSIGNEE:
Instant Brands LLC
Pressware Plant
One Steuben Street
Corning NY 14830
UNITED STATES

SHIPPER:
The Quartz Corp
KT Feldspar Plant
8342 Highway 226 Bypass
Spruce Pine NC 28777

PERMANENT POST OFFICE ADDRESS OF SHIPPER:
The Quartz Corp
KT Feldspar Plant
8342 Highway 226 Bypass
Spruce Pine NC 28777

B/L NO
#122243

B/L DATE

CUSTOMER P.O NUMBER	ORD DATE	CAR NUMBER	OUR ORDER NO	FREIGHT CHARGES
10628150	04/20/2023	SIL-01	K233674	Collect
SHIP VIA: CSXT Railroad	MODE: Bulk Trailer Truck		FOB: Spruce Pine, NC	"Shippers imprint in lieu of stamp; not a part of bill of lading approved by the Interstate Commerce Commission"
ROUTING	DATE SHIPPED: 4-25-23			Subject to section 7 of Conditions of applicable bill of lading, if this shipment is to be delivered to the consignee without recourse on the consignor, the consignor shall sign the following statement: The carrier shall not make delivery of this shipment without payment of freight and all other lawful charges. THE QUARTZ CORP

SPECIAL INSTRUCTIONS

ITEMS BETWEEN DOUBLE LINES ARE NOT PART OF THE B/L

Z100893 - Minspar 1 FG Bulk 24.000 Short ton

Lot Number:
Seal Number:
Loader:
Comments:

VS : BK# : C/O : Sail : UNITED STATES

Agent or Cashier
Per
(The Signature here acknowledges only the amount prepaid.)

(Signature of Consignor)
If charges are to be prepaid, write or stamp here, "To Be Prepaid."

Charges Advanced:
This car is loaded in compliance with requirements of sections 500.70 to 500.73 inclusive of O.D.T. 18-A Revised Part 500.

By THE QUARTZ CORP

Rec'd
to apply in prepayment of the charges on the property described hereon.

WEIGHT'S GROSS, TARE, NET

GROSS:
TARE:
NET:
DOCK:
ARRIVE:
LEAVE:

NO. PACKAGES	KIND OF PACKAGE, DESCRIPTION OF ARTICLES, SPECIAL MARKS AND EXCEPTIONS	STCC NUMBER	*WEIGHT (SUBJ TO CORR.)	CLASS OR RATE
	GROUND FELDSPAR ORE	03296510	48000	
	***** TOTAL WEIGHT :		48000	

WARNING: TQC USA contain silica. DO NOT BREATH DUST. Prolonged inhalation may cause lung injury (Silicosis). Follow OSHA Safety & Health Standards for crystalline silica (Quartz). There is sufficient evidence that inhaled crystalline silica causes cancer in humans.

*** If the shipment moves between two ports by a carrier by water, the law requires that the bill of lading shall state whether it is "carrier's or shipper's weight". NOTE - Where the rate is dependent on value, shippers are required to state specifically in writing the agreed or declared value of the property. The agreed or declared value of the property is hereby specifically stated by the shipper to be not exceeding**

AGENT MUST DETACH AND RETAIN THIS SHIPPING ORDER AND MUST SIGN THE ORIGINAL BILL OF LADING

The Quartz Corp

Shipper, Per

THE QUARTZ CORP
Box 309, Spruce Pine, NC 28777

GROSS 77280 lb

B/L NO 122243

46,020

LBS GROSS 09:10AM 04/25/2023

LBS TARE GROSS 31260 lb

LBS NET 09:15AM 04/25/2023

WEIGHED BY _____

CUSTOMER NAME Instant Brands

LOCATION Corning NY

PRODUCT _____ **CARRIER** _____ **DATE** 4-25-23

Autumn Transport, Inc.

6550 Courtly Road
Woodbury MN 55125-2921
1-800-328-1405

Invoice Number
558057A

Delivery Date 5/4/2023

Shipper: THE QUARTZ COMPANY
8342 NC-226
SPRUCE PINE, NC 28777

Consignee: WORLD KITCHEN
1 STEUBEN ST
CORNING, NY

Rev Type 1 PNEU
Driver THOMACH
Tractor 1164
Trailer 52105
Carrier UNKNOWN

Reference Number(s)

Type	Number
PO #	10628539
BL#	X122511
ORD#	K233739

Description	ACTUAL WEIGHT	Billing Quantity	Rate	Charge
FELDSPAR	39,920. Pounds			
3-Freight (flat)		1 Flat	3,050.00 Flat	$3,050.00
Washout		1 Flat	350.00 Flat	$350.00
Fuel Surcharge - % of revenue		3,050 US Dollars	0.32 $/Dollar	$976.00
Total Due				**$4,376.00**

* Questions email billing@autumntransport.com *
Please reference invoice number on all payments
1.5% per month finance charge after 21 days
Customer responsible for all costs of collection

5/11/2023 11:42:25 AM

AUTUMN

Bill To: INSDOW EC
INSTANT BRANDS
3025 HIGHLAND PARKWAY
SUITE 700
DOWNERS GROVE, IL 60041

Remit To:
Autumn Transport. Inc.
PO Box 877
Lake Elmo MN 55042

SHIPPER THE QUARTZ CORP

"Shipper's imprint in lieu of stamp: not part of bill of lading approved by the Interstate Commerce Commission"

THIS MEMORANDUM Is an acknowledgement the a bill of lading has been issued and is not the Original Bill of Lading, nor a copy or duplicate, covering the property named herein, and is intended solely for filing or record.

RECEIVED, subject to the classifications and tariffs in effect on the date of the issue of this shipping order. the property described below, in apparent good order, except as noted (contents and condition of contents of packages unknown); marked, consigned, and destined as indicated below, which sai carrier (the word carrier being understood throughout this contract meaning any person or corporation in possession of the property under the contract) agrees to carry to its usual place of delivery at said destination, if on its route, otherwise to deliver to another carrier on the route to said destination. It i mutually agreed, as to each carrier of all or any of said property over all or any portion of said route to destination, and as to each party at any time interested in all or any of said property, that every service to be performed hereunder shall be subject to all the terms and conditions of the Uniform Domestic Straight Bill of Lading set forth (1) in Official, Southern, Western and Illinois Freight Classifications in effect on the date hereof, if this is a rail-water shipment, or (2) in the applicable motor carrier classification or tariff if this is a motor carrier shipment. Shipper hereby certifies that he is familiar with all the terms and conditions of the said Bill of Lading, including there on the back, therefore, set forth in the classification or tariff which governs transportation of this shipment, and the said terms and conditions are hereby agreed to by the shipper and accepted for himself and his assign

This is to certify that the below names materials are property classified described package marked and labeled and are in proper condition for transportation according to the applicable regulations of the Department of Transportation.

CONSIGNEE:
Instant Brands LLC
Pressware Plant
One Steuben Street
Corning NY 14830
UNITED STATES

SHIPPER:
The Quartz Corp
KT Feldspar Plant
8342 Highway 226 Bypass
Spruce Pine NC 28777

PERMANENT POST OFFICE ADDRESS OF SHIPPER:
The Quartz Corp
KT Feldspar Plant
8342 Highway 226 Bypass
Spruce Pine NC 28777

B/L NO.
X122511
B/L DATE

CUSTOMER P.O NUMBER	ORD DATE	CAR NUMBER	OUR ORDER NO	FREIGHT CHARGED
10628539	4/27/2023 2:13:4		K233739	Collect
SHIP VIA	MODE		FOB	"Shippers imprint in lieu of stamp; not a part of bill of lading approved by the Interstate Commerce Commision."
CSXT Railroad	Bulk Trailer Truck		Spruce Pine, NC	
ROUTING		DATE SHIPPED		Subject to section 7 of Conditions of applicable bill of lading, if this shipment is to be delivered to the consignee without recourse on the consignor, the consignor shall sign the following statement. The carrier shall not make delivery of this shippment without payment of freight and alll lawful charges

SPECIAL INSTRUCTIONS

THE QUARTZ CORP

ITEMS BETWEEN DOUBLE LINES ARE NOT PART OF THE B/L

Z100893 - MS1FG Bulk 24.000 Short ton

Lot Number:
Seal Number:
Loader:
Comments:

VS : BK# : C/O : Sail : UNITED STATES

Agent or Cashier
Per _____
(The signature here acknowledges only the amount prepaid.)

(Signature of Consignor)

If charges are to be prepaid, write or stamp here, "To Be Prepaid."

Charges Advanced:
This car is loaded in compliance with requirements of sections 500.70 to 500.79 inclusive of O.D.T 18-A Revised Part 500.

By THE QUARTZ CORP

Rec'd
to apply in preperation of the charges on the property described here on.

WEIGHTS: GROSS, TARE, NET

GROSS:
TARE:
NET:
DOCK:
ARRIVE:
LEAVE:

NO. PACKAGES	KIND OF PACKAGE, DESCRIPTION OF ARTICLES, SPECIAL MARKS AND EXCEPTIONS	STCC NUMBER	*WEIGHT (SUB TO COR.)	CLASS OR RATE
	GROUND FELDSPAR ORE	03295510	48000	
	***** TOTAL WEIGHT :		48000	

WARNING: TQC USA contain silica. DO NOT BREATH DUST. Prolonged inhalation may cause lung injury (Silicosis). Follow OSHA Safety & Health Standards for crystalline silica (Quartz). There is sufficient evidence that inhaled crystalline silica causes cancer in humans.

*** If the shipment moves between two ports by a carrier by water, the law requires that the bill of lading shall state whether it is "carrier's or shipper's weight". NOTE - Where the rate dependent on value, shippers are required to state specifically in writing the agreed or declared value of the property. The agreed or declared value of the property is hereby specifically stated by the shipper to be not exceeding**

The Quartz Corp

Shipper, Per

Permanent post office address of Spruce Pine, N.C. 28777

Agent
Per

SHIPPER'S NO

Autumn 1164
5/2/23

THE QUARTZ CORP
Box 309, Spruce Pine, NC 28777

39780
79700

GROSS 79780 lb
02:19PM 05/02/2023
GROSS 79700 lb
02:21PM 05/02/2023
02:19PM 05/02/2023

B/L NO X122571

LBS GROSS

LBS TARE

LBS NET

Bob P. 5-4-23

WEIGHED BY _____

CUSTOMER NAME Instant Brands

LOCATION Corning NY

PRODUCT M51FG **CARRIER** Autumn **DATE** 5/4/23

Quala

WASHOUT TICKET

Quala has gone Green!

Order Number
SO14047658
Work Order No
WO14249444
Printed Date
05/02/2023

Service Location	Service Date
Charlotte NC - 115 1201 Exchange St Charlotte, NC, US-28208 Phone No : 704-399-1744	05/02/2023

Customer:

Autumn Transport
6550 Courtly Road
Woodbury, MN, US 55125

Customer PO Number(S)	
NA	
Work Completed By	Rollie Walker
BOL Number	

Container Owner	Container Type	Container No	Tractor No.
Autumn Transport	DryBulk	52105	

Compt#	Service Method	Content(s)	Common Name
1 of 1	Regular Wash	OMYACARB 5-FL	Filler or Pigment

Work Details		Inspection Conditions		
Start Time	**Complete Time**	**Stains**	**Pits**	**Residue in Barrel**
05-02-2023 11:02:49	05-02-2023 11:53:37	Yes	NA	NA

Notes:

Line#	Description	Container Type	Qty	UOM
10	Non-Haz. Liq. Or Solid		0	Gallon
20	Hose Clean		1	Each
30	Pump Clean with Interior Clean		0	Each
40	Hand Labor per 1/2 hour		0	Each

Quala makes no guarantees warrantees (whether expressed or implied) regarding presence of material, product residue, moisture and/or other contaminants following the completion of the Quala cleaning process. The customer acknowledges and agrees that the post-cleaning inspection of its tank and related equipment is the sole responsibility of the Customer. By accepting its tank and related equipment following the Quala cleaning process, the Customer shall conclusively be deemed to have (a) acknowledged and agreed that such tank and related equipment are clean and acceptable for their next use by the Customer and (b) agreed to indemnify, defend and hold Quala harmless from any and against any and all loss, liability, damage, claim, cost or expense arising out of or in connection with such next use. The customer agrees that Quala shall not be responsible for any loss or damage to the Customer's tank or related equipment while on Quala's premises.

Thank you for your business!

Chris Hendrix

From: Ponchione, Michele A. <Michele.Ponchione@instantbrands.com>
Sent: Thursday, June 15, 2023 9:31 PM
To: Chris Hendrix; Gideon M. Bolson
Subject: RE: Instant Brands

https://www.instantbrandsrestructuring.com/

The link above will provide you all the information for the filing.

According to my information I see Autumn pre-petition values at $13,143.

Yes we value all our key freight haulers both for transporting our raw materials, our finished products to our customers and our plant to plant freight needs.

The pre-petition is with the court system so I would advise Autumn to proceed with filing as soon as possible.

We certainly appreciate your support to date and hope you continue to support our needs going forward. Our glass plant in NY is running and we need the Quartz material.

Please review and feel free to reach out if you have any questions or concerns going forward.

Thank You
Michele Ponchione

From: Chris Hendrix <crhendrix@autumntransport.com>
Sent: Thursday, June 15, 2023 7:59 AM
To: Gideon M. Bolson <gmbolson@autumntransport.com>; Ponchione, Michele A. <Michele.Ponchione@instantbrands.com>
Cc: Chris Hendrix <crhendrix@autumntransport.com>
Subject: [EXTERNAL] RE: Instant Brands

> **CAUTION:** This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Good morning Michele,

Autumn has worked through Chapter 11 filings with other customers in the past. More often than not, the outcome is not good for the vendor. I have seen Chapter 11 filings where the filer makes pre-petition obligations a priority in their attempts to maintain relationships with preferred vendors. Do you foresee Instant Brands taking a similar approach?

Chris Hendrix
Business Strategist
Direct: 651-294-0130
Office Hours: Monday - Friday 7:00AM – 4:00PM (CST)

From: Gideon M. Bolson <gmbolson@autumntransport.com>
Sent: Wednesday, June 14, 2023 9:25 AM
To: Ponchione, Michele A. <Michele.Ponchione@instantbrands.com>
Cc: Chris Hendrix <crhendrix@autumntransport.com>
Subject: Instant Brands

Good morning Michele,

I hope your day is off to a good start.

I was notified that Instant Brands will be going through Chapter 11 bankruptcy. I wanted to check with you to see if you had any indication that this would affect the outstanding invoices we have with your company, or if there was any other type of communication you might be able to share with us.

Thanks,

Gideon Bolson
Pneumatic Divison Manager
Pneumatics | Liquid Tanks | |Hoppers | |End Dumps

Phone: 800-328-1405 x 860
Fax: 651-294-3484

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